

25VECV07301 25VECV07301

County: los-angeles

Division: Civil Law and Motion

Department: W

Hearing date: 2026-08-11

Motion: MOTION TO COMPEL ARBITRATION BY DEFENDANTS PRECISION LANDSCAPE & TURF INC.; LBY REAL ESTATE INVESTMENTS, INC.; DEEPAK VASANDANI AND DANIEL SIAPIN

Source URL: https://www.lacourt.ca.gov/tentativeRulingNet/ui/main.aspx?casetype=civil&dept_date=NW%20%2CW%2C08%2F11%2F2026

Source SHA-256: 58544ffb3096d58011bdbc8e7a6f04c39741108ab288d177feaeaff406839388

Case Number: 25VECV07301 Hearing Date: August 11, 2026 Dept: W

SUPERIOR

COURT OF THE STATE OF CALIFORNIA

FOR

THE COUNTY OF LOS ANGELES - NORTHWEST DISTRICT

19350 SHERMAN

WAY HOMEOWNERS

ASSOCIATION, a California nonprofit

mutual

benefit corporation,

Plaintiff,

vs.

PRECISION LANDSCAPE & TURF INC. a

California corporation; LBY REAL ESTATE

INVESTMENTS, LLC a California Limited Liability company dba PRECISION SOLAR

INSTALLATION & MAINTENANCE;

DEEPAK VASANDANI, an individual;

DANIEL SIAPIN, an individual; and

DOES 1 through 50 inclusive,

Defendants.

CASE NO: 25VECV07301

[TENTATIVE]

ORDER RE:

MOTION

TO COMPEL ARBITRATION BY DEFENDANTS PRECISION LANDSCAPE & TURF INC.; LB
Y REAL

ESTATE

INVESTMENTS, INC.; DEEPAK VASANDANI AND DANIEL

SIAPIN

Dept. W

8:30 a.m.

August 11, 2026

For the reasons stated below, the
Court GRANTS Defendants' Motion to Compel Arbitration.

Background

This is a breach of contract case. Plaintiff is the 19350 Sherman Way
Homeowners Association. Defendants are two corporate forms of a solar panel
installation company – Precision Landscape & Turf Inc., and LB
Y Real Estate
Investments, LLC (dba Precision Solar Installation & Maintenance); as well
as individual employee/agents of these companies, Deepak Vasandani and Daniel
Siapin.

Plaintiff alleges that they contracted with Defendants to install over
544 solar panels on the HOA's property, in exchange for a payment of

\$456,300.21. The project was to be completed by November 15, 2022. To date, Plaintiff has paid Defendants almost \$387,781.74, but the installation has not been completed.

On January 26, 2026, Plaintiff filed suit against Defendants, alleging eight causes of action: 1) breach of contract; 2) fraud; 3) negligent misrepresentation; 4) negligence; 5) conversion; 6) violation of penal code 496; 7) disgorgement; and 8) unfair business practices.

Now, Defendants now move to compel this matter into arbitration.

Discussion

Defendants move to compel Plaintiff into arbitration. (Mot. to Compel, p. 1:2-8.)

When a party has filed a petition to compel arbitration, the trial court must determine in a summary proceeding whether an “agreement to arbitrate the controversy exists.” (CIV §§ 1281.2, 1290.2; *Rosenthal v. Great Western Fin. Securities Corp.* (1996) 14 Cal.4th 394, 412–413.) The party seeking arbitration has

the “burden of proving the existence of a valid arbitration agreement by a preponderance of the evidence, while a party opposing the petition bears the burden of proving by a preponderance of the evidence any fact necessary to its defense.” (*Ruiz v.*

Moss Bros. Auto Group, Inc. (2014) 232 Cal.App.4th 836, 842.) To be valid, there must be a voluntary agreement to arbitrate, meaning the parties to the agreement must have mutually consented to contract. (CIV § 1550; *Berg v.*

Traylor (2007) 148 Cal.App.4th 809, 816-20.)

i)

Defendants’ Burden

To begin, Defendants bear the burden to prove the existence of a valid arbitration agreement by a preponderance of the evidence. (*Ruiz, supra*, at 842.) Here, Defendants provide evidence of a signed contract between the parties that includes an arbitration agreement. (*Siapin Decl. Ex. A.*) Specifically, Defendants provide a purchase agreement between Plaintiff Sherman Way HOA, and Defendants Precision Landscape & Turf Inc. (*Ibid.*) The document details

an agreement to install 544 solar panels on Plaintiff's property, for payment of \$456,300.21 – the precise details of the alleged contract in this case. (Id. p. 1.) This agreement is signed by both Plaintiffs and Defendant Daniel Slapin, on behalf of Precision Landscape & Turf. (Id. pp. 1, 5.)

This purchase agreement contains a clearly labeled "Arbitration" provision, which states that, "[a]ny controversy or Claim arising out of or relating to this contract or contract warranty or the breach thereof which cannot be resolved by mediations shall be settled by arbitration administered by the American Arbitration Association under its Construction Industry Arbitration Rules, and judgment on the award rendered by the arbitrator(s) may be entered in any court having jurisdiction thereof." (Id. p. 4.) This provision clearly applies to the case at hand, as Plaintiff alleges breach of contract. (Compl. ¶ 25.) Moreover, Plaintiff's complaint is based on an attached contract that is identical to the one submitted by Defendants. (See, Compl. Ex. 1; see also, Siapin Decl. Ex. A.) Thus, this lawsuit clearly arises out of this contract.

For these reasons, the Court finds that Defendants have met their initial burden to prove the existence of a valid arbitration agreement.

ii)

Plaintiff's Shifted Burden

The burden now shifts to Plaintiff to dispute the validity of the arbitration agreements. "[A] party opposing the petition [for arbitration] bears the burden of proving by a preponderance of the evidence any fact necessary to its defense." (Ruiz v.

Moss Bros. Auto Group, Inc. (2014) 232 Cal.App.4th 836, 842.) As this motion is unopposed, Plaintiff has failed to meet its burden.

For these reasons, the Court GRANTS Defendants' Motion to Compel Arbitration.

Conclusion

The Court GRANTS Defendants' Motion to Compel Arbitration. The Court expects the parties to act expeditiously in scheduling and completing the arbitration. The Court sets a Status

Conference on December 9, 2026, at 8:30 a.m., at which time the parties are to report on their progress.

IT

IS SO ORDERED. Defendants TO GIVE
NOTICE.